# DRAFT v0.3 for Minda: Fishbone chronology, all documents in one place

Prepared by Victoria, 2 Nov 2026. **v0.3** brings together every document we hold on claim 019JE538 (emails, bookings, tracker, phone bills, court papers, Lana's files, MSEM's evidence, the filed N9B, Chronology and N180) and rebuilds the chronology from them in date order. Appendix A lists the documents and where they are. Appendix B lists the telephone calls on record. Appendix C is the court timeline. Working note for hearing preparation. **Not for filing and not a replacement for the Chronology already filed (FC0000004).** Not legal advice. Whether and how to correct the filed papers is for the court office or an adviser. Points that depend on you or on a witness are marked **[CONFIRM]**. Times are UK time.

**Basis column.** DOC = a document we hold (email, invoice, booking, your call records MG6). V0.8 = your statement draft. MSEM-DOC = an exhibit of theirs (OCR of Irina's scans; check dates against the images). WITNESS = what a witness told you (hearsay until they confirm in writing). **Email file refs** are message numbers in the Central Square email file.

| Date and time | Fishbone's account | Basis | Notes |
|---|---|---|---|
| Before 26 Nov 2025 | Macdonald Joinery asks you by phone to take over the site management of the BBC Cardiff toilet job (FC2520) | V0.8 para 3 | Oral only |
| 24 Nov 11:16 | Andrew Macdonald emails: works start Monday 1 Dec; "Our Site Managers will attend ... Minda Gaudiesius, Mikheil Davidans" | DOC (email 43; MG11) | Names both of you. MSEM holds the same email (MD2) |
| 24–26 Nov | NJ17CYK parked at Sutton Street Car Park, Birmingham (RingGo): 24 Nov 06:52 to 25 Nov, then 25 Nov 06:52 to 26 Nov 06:52 | DOC (RingGo summaries 24, 25 Nov) | You were in Birmingham on 24–25 Nov and the car park ticket ends 06:52 on 26 Nov, which fits reaching Cardiff for the 11:00 meeting |
| 26 Nov 11:00 | Pre-start meeting at Central Square, led by Liam Price (EMCOR). You and Mikheil attend | DOC (email 43); MSEM agrees (his para 2) | |
| 26 Nov 16:01 and 16:05 | Your phone rings Mikheil twice after the meeting (57s and 54s) | DOC (your O2 bill, 3 Dec 25) | First calls to Mikheil on the bills since 30 Oct. Fits a call on the day of the pre-start meeting. Content not recorded |
| 27 Nov 09:06 | Andrew Macdonald to you: "BBC Cardiff Site Set-Up", delivered Monday 11:00 (hoarding, rubble trucks, H&S files, first aid) | DOC (email 54) | |
| 28 Nov 15:34 | Geoff Smith to you and Mikheil: Fishbone to supply ancillary items (fixings, adhesives, **silicones**) and invoice accordingly | DOC (email 79); MSEM-DOC (MD8) | **Risk:** silicone was Fishbone's to supply. 10 Dec Mikheil: "I don't supply anything but I will speak to mindi" (email 164) |
| 1 Dec 07:53 | Liam Price: "the 2 projects starting today" | DOC (email 82; MG11) | |
| 1 Dec 08:44 | Mikheil: "1st induction is this morning 9 am". 11:51 Ryan Andrews: "Thank you for your help this morning" | DOC (emails 84, 88; MG11) | **Mikheil on site on 1 Dec: confirmed.** The register photographs start 2 Dec (MG1) |

| Date and time | Fishbone's account | Basis | Notes |
|---|---|---|---|
| 1 Dec 09:39, 09:44 | You email BBC security about a delivery of site set-up, van NJ17CWK, driver Mindaugas Gaudiesius | DOC (emails 86, 87) | You were in Cardiff that day |
| 1 Dec 07:52, 11:29, 12:56 | Your phone rings Mikheil three times (25s, 7s, 1m 05s). 2 Dec 08:39 once more (47s) | DOC (your O2 bill, 3 Dec 25) | Contact on the start day. Helps "started on 1 December". Content not recorded |
| 1 Dec | Tracker: NJ17CWK drives about 06:00 to 09:30 (3h 11m), then stopped to about 15:30. RingGo: NJ17CYK parked in Birmingham at 07:02 and again at 19:30 (66 Holloway Head) | DOC (Radius weekly report 1–7 Dec; RingGo) | **[CONFIRM]** who drove CWK to Cardiff and who moved CYK in Birmingham that evening, if you were in Cardiff |
| 1 Dec onward | Terms with Mikheil: verbal, £300 a day, no written agreement, no fixed end date; fuel and accommodation agreed; full Friday paid only if all works completed on schedule (oral). Telegram group created 1 Dec | V0.8 paras 4–5, 8; DOC (Telegram export: group "FC2520 BBC Cardiff – toilet refurb project" created by you on 1 Dec; members you, Andrejus, Mikheil, Anastasia (removed 7 Jan), later Raitis Bikovs, shown as Raitis Latishka; you removed Mikheil on 24 Oct 2026 and exported the chat that day, so he was a member throughout. Your full export of 2 Nov has the same 164 entries and ends at 12 Feb 16:07: nobody wrote in the group after that) | The Friday condition rests on your word. **Telegram has about 21 posting days from 2 Dec to 6 Feb, photos and videos only, no defect comment from Mikheil, and nothing from 7 to 11 Feb. The Delivery topic you created for photographs of deliveries has no posts at all, though Mikheil knew its purpose** |
| 2 Dec to 6 Feb | Mikheil posts daily progress and sign-in register photographs to the Telegram group | DOC (MG1); MSEM-DOC (MD12) | Register ends 6 Feb; none for 9–13 Feb |
| 4 Dec 17:03 | You buy a 24-hour WiFi plan at the Premier Inn "Cardiff Zip" (receipt 18:16) | DOC (minda@, purple.ai) | You were in Cardiff that evening |
| Dec | You are site manager at Roath Lock; Mikheil at Central Square | V0.8 para 9; MSEM agrees (his para 2) | Mikheil says he was told to take Roath Lock too "about two weeks" after the start (his paras 3, 12) |
| Dec | Fishbone supplies and pays the labour: a team of two Torin joiners and Raitis Bikovs; Mikheil directs them as site manager | V0.8 para 7 | Mikheil: no authority over labour (his paras 5, 99). Bikovs's own emails: mainly Roath Lock kitchens; at Central Square Wed 11 Feb and Mon 16 Feb. **The sign-in sheets also show "Raitis" (FB) at Central Square 2, 3, 4 and 5 Dec; from 8 Dec Bulakevych and R. Drulit (Torin) are signed in every day with Mikheil (sheets read 2 Nov; Mikheil on the register 37 of 39 working days 2 Dec to 6 Feb, none for 9 to 13 Feb held). But** he (Telegram name Raitis Latishka) was added to the Central Square group on 2 Dec and posted a video there on 5 Dec **[CONFIRM]** where he worked 2–6 Dec |

| Date and time | Fishbone's account | Basis | Notes |
|---|---|---|---|
| 7 Jan 2026 13:07 | Liam Price (EMCOR) to Macdonald, copying you: he has been told Mikheil is managing both sites and needs a manager at both at all times | DOC (thread "Site Management"; MG13) | Both-site management had started by 7 Jan, not mid-December |
| First working week of Jan | Macdonald tells you by phone it is unhappy with costs and one site manager is enough for five operatives; you leave Mikheil as site manager on both | V0.8 para 9 | **[CONFIRM]** against the 7 and 12 Jan emails and when you told Mikheil |
| 12 Jan 10:28 | Andrew Macdonald: an "English-speaking working Site Foreman on site at Roath Lock", named Oleksii 'Alex' Starovoitov | DOC (MG13) | Rebuts Mikheil's "no extra management support" (his para 15). His 12 Jan emails show him working on Roath Lock (MD11) |
| 17 Jan | You and Andrejus fly Kaunas to Edinburgh, then train to Newcastle | DOC | Whereabouts only |
| 21 Jan 08:22 | Liam Price: Roath Lock management "completely unacceptable", no daily FM briefing; "Work has progressed well and the quality of work is good". 15:12 you reply that "Mikheil and Alex every morning will have little meetings with FM" | DOC (emails in thread; your reply) | Shows you instructed Mikheil to brief the FM team |
| 23 Jan | Two adults travel Cardiff to London | DOC (LNER) | **[CONFIRM]** who travelled |
| 26 Jan 20:30 | Darren Burns (Currie & Brown, principal designer) to Mikheil, after a site visit: "Sites were in good order and there were only 2 minor actions raised in Roath Locks" | DOC (email 331 thread) | **Adverse.** MSEM may use it |
| 26–30 Jan | Raitis Bikovs at Travelodge Cardiff Atlantic Wharf (PO FC2521) | DOC | PO FC2521 is not the Central Square job number |
| 29 Jan | Pabis and Mr Kogut go to Guernsey (Premier Inn, 29 Jan to 6 Feb) | DOC; Minda 2 Nov | Pabis does not return until the 12 Feb ferry |
| 30 Jan 09:20 | Call from Mikheil's phone to your number (1m 13s) | MSEM-DOC (MD14) | |
| On or about 30 Jan | A meeting at the BBC. You did not attend. Same day Mikheil phones you, says he needs to finish and will be ready for handover; no mention of defects or need for help | V0.8 para 10 | **[CONFIRM]** who told you it was a pre-handover meeting, and when he phoned. No email about this meeting. Mikheil: a Roath Lock kitchens meeting, then 40–60 minutes at Central Square (his paras 25–29) |

| Date and time | Fishbone's account | Basis | Notes |
|---|---|---|---|
| 2 Feb | **You arrive in Cardiff and visit the Roath Lock project that evening; you did not see Mikheil that day** (Minda, 2 Nov evening; Mikheil says you attended briefly about a vehicle, his para 33). You travel in NJ17CYK from Newcastle to Cardiff, you driving (tracker: about 08:00 to 15:00, 5h 28m). Andrejus stays at Cardiff Atlantic Wharf (1 night, booked 09:44) | Minda 2 Nov; DOC (Radius weekly report 2–8 Feb; Travelodge 161420982) | Mikheil says you attended briefly on 2 Feb about a project vehicle (his para 33) and that you and Andrejus visited on 9 and 10 Feb (his paras 17, 42–45). **[CONFIRM]** time of the visit, who you saw, whether Mikheil walked you round, what he showed you and what was said |
| 3 Feb | You and Andrejus are in Cardiff. Tracker: CYK drives back to Newcastle with you both, 6h 11m on the day, arriving about 22:30 to 23:00. Drulia starts as site manager on FC2602, Roath Lock toilets. Your two outgoing calls, each under 30 seconds. 10:47 call from Mikheil's phone to yours | Minda 2 Nov; DOC (Radius weekly report 2–8 Feb); V0.8 para 15; MG6; MD14 | Your presence in Cardiff on 3 Feb is supported by the tracker. **Minda, 2 Nov evening: on 3 Feb you spent 3 to 4 hours at Roath Lock with Dainius Drulia, then you and Andrejus visited Mikheil at Central Square and asked him about completion. [CONFIRM]** times, what you asked and he answered, where Andrejus was in the morning (his phone rang Drulia four times that day), why the 09:24, 13:55 and 10:47 calls with Mikheil, and when you left. **The "9 Feb visit" in the filed Chronology is, on your account, the 2 Feb visit.** The Chronology and Mikheil both describe a site visit by you and Andrejus with a café meeting (Mikheil: 9 Feb); the documents and your account place it on 2 Feb. MSEM will say you saw the state of the works then. Pabis was in Guernsey |
| 3 Feb 18:20 | Cardiff flat booked for 6–13 Feb, 3 adults, guest Andrejus; Drulia forwards the confirmation | DOC | **[CONFIRM]** who stayed |
| 4 Feb 15:32 | Dave Newell (J4) asks Macdonald and Liam Price: "Does Thursday next week work for a final site meeting for the WCs?" | DOC (in email 326; MG12) | |
| 5 Feb 09:01 | You phone Mikheil (about 1 minute). You ask whether he needs spare labour and whether he is working the weekend. He says he is in control, not working the weekend, "not to worry". He asks for no help and reports no problem | V0.8 para 12; DOC (MG6) | Mikheil says he raised gaps and finishing needs by phone around 6 Feb (his para 36); his phone called you at 15:35 on 6 Feb. **[CONFIRM]** |
| 5 Feb 11:20, 11:26 | Geoff Smith asks you to measure a vanity unit top; you reply with a photograph taken at 11:23 | DOC (emails 323–325) | **[CONFIRM]** who took the photograph; if Mikheil sent it, it shows contact that morning |

| Date and time | Fishbone's account | Basis | Notes |
|---|---|---|---|
| 6 Feb 12:43, 13:01 | David Macdonald forwards Newell's email: "Please see date for snag and handover of the toilets." You reply: "Yes, Thursday perfect." (Thursday = 12 Feb) | DOC (emails 326, 327; MG12) | **The 12 Feb date reached you in writing on 6 Feb.** V0.8 para 6 corrected |
| 6 Feb 15:35 | Call from Mikheil's phone to your number (2m 37s) | MSEM-DOC (MD14) | He says this was about gaps (his para 36). Last sign-in photograph 6 Feb (MG1). **Telegram:** Mikheil posts 6 Feb's sign-in sheet at 15:25 (him, two other Fishbone names, three EMCOR), ten minutes before this call; it is his last post until 12 Feb. Andrejus's bill shows no call to or from Mikheil that day |
| 7 Feb (Sat) | Programme shows testing and commissioning starting | DOC (MG2) | Both buildings open at weekends |
| 8 Feb 18:32 | MSEM invoice 553 (£1,898; £1,518.40 net; due 20 Feb), copied to Mikheil. Drulia's invoice (15 Feb): "08.02.2026 Cardiff bbc, 6 days" | DOC (email 329, 337) | Reminder 22 Feb 15:06 (email 354) |
| 9–15 Feb | No Radius weekly report for this week; no tracker data. Radius sent a new Kinesis contract and order emails on 13 Feb | DOC (info@) | **Gap.** Get the journey history from the Radius Velocity portal. No parking, fuel or train receipt places anyone in Cardiff this week |
| 9 Feb | The programme's snagging meeting does not take place; the final site meeting is the Thursday 12 Feb one | V0.8 para 6; DOC (6 Feb emails) | The emails do not say 9 Feb was cancelled. **No email mentions a 9 Feb visit.** A London hotel was booked for Andrejus that day (12:51). Mikheil: you and Andrejus attended and met him in the café (his paras 42–45). **Minda, 2 Nov evening: you and Andrejus were on site on 9 Feb, and MSEM agrees. [CONFIRM]** travel, where you slept 8–9 Feb, who you saw, what was asked and answered about labour. v0.8 para 13A is a placeholder |
| 10 Feb 10:27 | Mikheil sends you a WhatsApp video | MSEM (his para 48) | Your account (v0.8 para 14): a damaged panel with a colour label. His: door gaps, in Russian. **Check the WhatsApp export and the video** |
| 10 Feb 10:36 | Call from Mikheil's phone to your number (1 minute) | MSEM-DOC (MD14) | |
| 10 Feb 13:03, 13:35 | You phone him about the panel; he sends a photograph of the panel label | DOC (MG5, MG6) | Only problem he raised with you in writing. 18:18 his email to you [331] about a Roath Lock toilets visit has no defect content Your O2 bill shows the 13:03 call lasted **4m 38s**. |
| 10 Feb 14:35, about 15:19 | Calls from Mikheil's phone to Andrejus's number | MSEM-DOC (MD14) | |

| Date and time | Fishbone's account | Basis | Notes |
|---|---|---|---|
| 11 Feb 11:55–14:19 | Fishbone books a Guernsey to Portsmouth ferry for 12 Feb for Sebastian Pabis and Anton Kogut with van NJ17CWK (£711.81 quoted); Andrejus's number (number in the email file) given | DOC (info@, Brittany Ferries) | Mikheil says "Danila" started remedial work at Central Square on 11 Feb: **[CONFIRM]** with Drulia. Bikovs at Central Square on Wed 11 Feb (his own email) |
| 12 Feb 10:50, 13:00 | Calls from Mikheil's phone to your number (1m 52s; 3m 06s) | MSEM-DOC (MD14) | |
| 12 Feb | Final site meeting at Central Square. You were not there | V0.8 paras 15–16 | **[CONFIRM]** who attended for Fishbone and whether Drulia was there. Mikheil: he went round briefly and was told a list would follow (his paras 51–57) **Your O2 bill shows you called Mikheil four times on 12 Feb (08:03, 10:21, 10:26, 15:27) and his phone called you at 10:50 and 13:00.** Contact that day was constant. |
| 12 Feb 13:24, 13:30 | Pabis booked at Travelodge Bridgend Pencoed 12–16 Feb; Drulia 13–16 Feb | DOC | Pabis was on the ferry (08:15 Guernsey, 15:45 Portsmouth) and could not have attended the 12 Feb meeting |
| 12 Feb 15:11, 15:32 | Dave Newell emails 16 snagging items "following the snagging meeting today"; "We will need to delay handover until items 1–16 are complete". David Macdonald forwards: "This is just the start of it" | DOC (email 332; MG7) | List: set-out of cubicles and floor, silicone, aligning panels, shadow gaps, bubbles on doors, damaged edges |
| 12 Feb 16:03–16:31 | Andrejus's phone: 16:03 to you (10m 46s); **16:07 Andrejus posts in the Telegram project group the snagging list as a PDF (20 items, 13 photographs) with "I am sharing 'Cardiff snagging list following site review 12th Feb 2026' with you"** (Mikheil is a member), then "Пипец" at 16:07:58; **16:29 Andrejus rings Mikheil (1m 52s)** | DOC (Telegram export, Raw `ChatExport_2026-10-24`; Andrejus's O2 bill 21 Feb 26) | **Mikheil's para 60 says nobody at Fishbone sent him the list directly. Andrejus put it in the group he belongs to and rang him 22 minutes later.** He was a member until you removed him on 24 Oct; the chat cannot show whether he opened the file. MSEM exhibits the same Telegram circulation (MD15) |
| 12 Feb 20:31 | Mikheil asks BBC parking for level -2 access at 09:00 on 13 Feb | MSEM (his para 66; MD16) | |
| 13 Feb 11:17, 12:23 | Mikheil books parking for Sebastian from 13:00 to 18:00 | MSEM (his para 68; MD16) | |

| Date and time | Fishbone's account | Basis | Notes |
|---|---|---|---|
| 13 Feb 11:41, 11:47 | Dave Newell sends you two Teams invitations, "Cardiff": first 12:00–12:30, then moved to **14:00–14:30**; invitees Macdonald, Price, you | DOC (emails 333, 334; MG14) | Mikheil was not invited. The invite does not show whether you joined; check the Teams record |
| 13 Feb 12:57, 13:38 | Mikheil emails Geoff Smith about silicone; "mindi send me a Sebastian and Daniela. And they doing the snagging" | MSEM-DOC (MD16) | He was working on 13 Feb after noon |
| 13 Feb | You join the Teams meeting on your way to Cardiff; arrive that night; not on site | V0.8 para 17 | **[CONFIRM]** where you travelled from and why Andrejus had a room at Travelodge Kings Cross for 13 Feb (booked 10 Feb). **His phone shows no call to you or Andrejus on 13 Feb.** No email from you on 13 Feb **Your O2 bill shows no call from you to Mikheil on 13 Feb either.** |
| 13 Feb 15:16 | Geoff Smith: "an unmitigated disaster"; "Are these your guys or Minda's?" | MSEM-DOC (MD16) | |
| 13 Feb 16:05 | Mikheil: "I got blamed for everything and got removed. I am on the way home." | MSEM-DOC (MD16) | You say you did not tell him to leave or go home (V0.8 para 20). He does not say who removed him |
| 13 Feb | Invoice 552 paid. Safer wording: Mikheil "left on 13 February" | V0.8 para 21 | "Around noon" is hearsay and conflicts with his emails |
| 14 Feb | You and Andrejus go to the site and plan the rectification with Drulia and Pabis. They tell you he has left, in their words had "finished his ten-week project", and was on site on 13 Feb | V0.8 para 19 (WITNESS) | **[CONFIRM]** each confirms in writing. Pabis could first reach Cardiff on the night of 12 Feb |
| 13 Feb to 1 Mar | Fishbone pays for labour and materials to put the work right: Snag Doctor £530.00 (INV-0622 £636.00 with VAT, emailed 15 Feb); Kogut £1,400.00; Drulia £2,300.00 (Central Square days from 13 Feb); Pabis £3,730.69 (employment cost); Bikovs £112.50 (Mon 16 Feb overtime); Starovoitov £308.75 (16 Feb) | V0.8 paras 23–24; DOC (Rachel, QuickBooks, invoices; MG10) | Evidenced £8,381.94; claimed £7,997.25. Kogut's own emails carry January dates (16, 24 Feb, 2 Mar); needs his written confirmation |
| 15 Feb 16:29 | MSEM invoice 554 (£1,891 gross; £1,512.80 net) | DOC (email 336) | You accept he worked the days in 553 and 554 |
| 18 Feb | You message Mikheil on WhatsApp asking where the signage is; no reply | V0.8 para 20; DOC (MG5) | His phone called yours at 14:24 that day (MD14; he says 15:20). **[CONFIRM]** whether you spoke **Your O2 bill: you rang him at 12:23 (2 seconds, forwarded); his phone rang you back at 14:24.** |

| Date and time | Fishbone's account | Basis | Notes |
|---|---|---|---|
| 19–20 Feb | "WC sign" emails: the sign is "not sent to site as yet" | DOC (emails 345–353; MG8) | |
| 22 Feb 15:06, 15:10 | Automatic reminder for invoice 553; four minutes later his WhatsApp asking for payment (and a similar message to Andrei at 16:07) | DOC (email 354); MSEM (his para 86) | |
| 23 Feb 12:56, 12:58 | David Macdonald asks that the main toilets be completed for Wednesday. You reply: "Guys is working there. They managed to move panels. One cubicle has been finished before lunch." | DOC (emails 355, 356; MG8) | |
| 23 Feb 13:11 | You reply to his WhatsApp that Fishbone's payment is held until handover | V0.8 para 20; DOC (MG5) | The reason you gave at the time was not the defects |
| 27 Feb 17:09, 17:25 | He asks again; you say handover is Monday, then you will call to discuss closing the matter; he replies "Ok, thanks" | V0.8 para 20; DOC (MG5); MSEM (his para 87) | |
| 3 Mar 17:00 | Egita Davidane emails: invoices overdue, asks status, reason and date | DOC (email 363) | First written chase from MSEM |
| 6 Mar | Letter before action | DOC (email 365) | |
| 16 Mar 16:00 | MSEM's "Final Notice Before Court Claim" for invoices 553 and 554; reminders for both | DOC (emails 373–375) | |
| 18 Mar 10:34 | You dispute the invoices in writing: incomplete works, delay, defects, site management, remedial cost. 11:38 Egita replies: first time concerns raised; "Mikheil was removed from the project immediately after receiving that list"; asks for photographs, reports and invoices | DOC (emails 377–379; MG9) | Your email says "numerous telephone calls": your records show two calls on 3 and 5 Feb |
| 27 Mar 16:46 | Egita Davidane: Mikheil "worked on site for a total of 10 weeks, as originally agreed"; 8 weeks paid and the 9th completed; "A snagging list was only provided on the Thursday of the 10th week, and Mikheil completed his work on the Friday as planned"; all workers were supplied by Fishbone; asks for documents within 5 working days | DOC (Lana's file "Correspondence with MSEM UK Ltd"; ED6) | **MSEM's own account of why he left differs three ways:** 18 Mar "removed immediately after receiving [the] list"; 27 Mar "completed his work on the Friday as planned"; statement: you told him to hand over and go home. Also conflicts with your para 4 (no fixed end date) |

| Date and time | Fishbone's account | Basis | Notes |
|---|---|---|---|
| 7 Apr | Second letter before action: net £3,031.20, 14 days | MSEM-DOC (ED7) | **[CONFIRM]** whether anything was sent to MSEM after 18 and 27 Mar. MSEM says nothing was |
| 22 Apr | MSEM issues the money claim; HMCTS notice emailed 16:27, response due by 4pm on 20 May | DOC (info@; Lana's "Court corespondance") | |
| 6 May | Lana emails law firms (Fenwick Elliott, Helix Law) asking for representation. Her account: "Friday handover inspection", Mikheil "failed to attend site on the following Monday and ceased involvement"; "frequent telephone discussions" | DOC (info@) | First written account of the dispute. Differs from the later Chronology (12 Feb). **[CONFIRM]** whether either firm acted. No sign they did |
| 11–15 May | N9B Defence and Counterclaim signed (11 May) and sent via the portal (15 May) with the Chronology of Events (FC0000004) | DOC (FC0000008, FC0000004) | **Both papers contain statements the documents do not support:** 30 Jan "pre-handover inspection"; "several" contacts 2–6 Feb; **9 Feb site visit (you now say you were on site on 9 Feb as well as 3 Feb, and MSEM agrees)**; 12 Feb "failed handover"; Mikheil "ceased communication" and "failed to return". Counterclaim £4,966.05 net of £7,997.25 |
| 19 May | You email the court the counterclaim documents (N9B and Chronology); automatic receipt | DOC (info@ 19e404fb2e16ddef) | |

## Figures

- MSEM's net claim: £3,031.20 (553: £1,898 less £379.60 CIS; 554: £1,891 less £378.20 CIS).
- Fishbone's counterclaim: £7,997.25 claimed; £8,381.94 evidenced.
- Net counterclaim if allowed: £4,966.05.

## What changes from the Chronology (FC0000004) and the N9B (FC0000008) we filed

1. "Mikheil left the site on **12** Feb and ceased communication" and "failed to return": his emails show he worked on 13 Feb and wrote at 16:05; he messaged about pay on 22 and 27 Feb. MSEM's own 27 Mar email says he completed his work on Friday as planned. Use **13 Feb**.
2. "9 February site visit by you and Andrejus": you told me on 2 Nov that you were on site on 9 Feb too, and Mikheil says the same (his paras 17–19, 42–47), so this statement may be right. None of our documents shows it yet; the 3 Feb visit is the one the tracker supports.
3. "Mikheil attended the 30 Jan pre-handover meeting on behalf of Fishbone": no document shows this; he says it was a Roath Lock meeting.
4. "Several telephone discussions" on 2–6 Feb: your records show calls on 3 and 5 Feb only; his phone called you on 3 and 6 Feb; you and Andrejus were on site on 2 Feb.
5. "Two additional subcontractors Sebastian and Dainius dispatched on 12 Feb": Pabis was crossing from Guernsey.
6. The remedial-works section appears twice and the £ figure is written two ways.
7. "Numerous telephone calls" (your 18 Mar email, copied from Lana's 6 May wording): **your O2 bills show about 15 calls from your phone to Mikheil between 4 Jan and 2 Mar**, so "numerous" is fair as to volume. What was said on them rests on your word. My earlier note that your records show only two calls was wrong; it covered 2–6 Feb only.

## What I would not put in any statement until confirmed

- Where you and Andrejus were on 3, 8, 9 and 13 Feb (2 Feb is now supported). Your O2 bills now cover calls but not what was said.
- What was said and seen on site on 2 Feb, and on the calls of 30 Jan, 3, 5, 6, 10, 12, 13 and 18 Feb.
- The J4 call (the 12 Feb date is in writing; a phone call is not documented).
- What Pabis and Drulia saw first-hand on 13 Feb, and who your three witnesses are.

## Appendix A. Documents and where they are

| Document | Where | Note |
|---|---|---|
| Witness statement v0.8 (review copy) and v0.7 | Outputs, `Witness-Statement-FILING-VERSION_v0.8` (.md, review PDF); v0.7 text and print PDF | v0.8 still has [CONFIRM] notes. Signing copy not built |
| Chronology of Events, as filed (FC0000004) | Drive case folder `154bmdh9lddVyAyGjJRb6XaoB7t7iD_U6`, id `1-m-SjaTJxy96nTf9GmR14MkcwrH-7kQq` | Sent 15 May |
| N9B Defence and Counterclaim (FC0000008) | Drive, id `1bpJG6SglPvbCoo5o75PQWz7-LCNTbmsD` | Signed 11 May, sent 15 and 19 May |
| Fishbone's N180 (FC0000009), signed | Drive, id `11EBPMwmMuN4x6oDOqTtdrX2tQC9BvFv7` | Paper decision yes; 3 witnesses; North Shields |
| Claimant's N180 (FC0000003) | Drive case folder (FC0000003) | MSEM said no to paper decision |
| MSEM evidence package (Mikheil's statement, MD1–MD20, Ryan Andrews, references) | Drive, Irina's scans, folder `15BUaM3mWHlZjO4EpuJg6UqqFctd0trBi` (16 PDFs) | Egita's own statement not in the folder |
| MSEM's phone bills (MD14) | Scan `2026-10-21_134903.pdf`, id `1BX3LrgQxFAewII22KxvTS0HjAXwsGup-` | Outgoing calls from his phone only |
| Collected Central Square emails (389) | `Outputs/…Central-Square-Emails_COLLECTED_v0.1.md` (local, **not in Git**: third-party personal data) | Index in the file |
| Lana's files: representation emails (6 May), "Correspondence with MSEM UK Ltd", "Court corespondance" | info@, message 19dfdf7e73ed3438 (attachments) | |
| 24 Nov, 1 Dec, 7 and 12 Jan, 21 Jan, 4–6 Feb, 12 Feb, 13 Feb emails (exhibits MG11 to MG14) | In the Central Square emails file, and in info@ | |
| Radius weekly vehicle reports (13) and tracker note | info@ (insight@kinesisfleet.com); `Outputs/…Vehicle-Tracking-Radius-Kinesis_DRAFT_v0.1.md` | No report for 9–15 Feb |
| Bookings (hotels, ferries, trains, Cardiff flat), parking receipts | info@, minda@; see test chronology | No Cardiff parking receipt exists |
| Check-against-emails, comparison v0.7 vs MSEM, test chronology, MSEM chronology, narrative chronology | Outputs (drafts) | Earlier working notes |
| Teams invitations 13 Feb | info@, messages 19c56ce125ac6e61, 19c56d45b7f93855 | Moved to 14:00–14:30 |
| Witness questionnaires (Pabis, Drulia sent 28 Oct), Andrejus and Kogut drafts (unsent) | Gmail drafts in info@ | Replies awaited |

## Appendix B. Telephone calls on record

Sources: **your O2 bills** (your O2 line; line and account numbers in the Raw bills) for 3 Nov 2025 to 2 Mar 2026, in the group Raw folder as `bill-20251203.pdf`, `bill-20260103.pdf`, `bill-20260203.pdf` and `bill-20260303.pdf`; and **Mikheil's Three bill** (MD14). Both list outgoing calls only (your bill also lists calls received while abroad). Incoming UK calls are on neither bill. - **Numbers identified by you (2 Nov):** one is Irina (your wife), one is Nev (a Fishbone site manager), one is Dainius Drulia. Calls to them are left out below. **[CONFIRM]** Nev's calls (3, 4 and 18 Dec) and Drulia's (28 Nov, 8 Dec) may matter if either was on the Cardiff job. - **From your phone to Mikheil, Nov to Dec 2025:** none 3–25 Nov (the Oct bill has four, 16–30 Oct). **26 Nov 16:01 (57s), 16:05 (54s); 1 Dec 07:52 (25s), 11:29 (7s), 12:56 (1m 05s); 2 Dec 08:39 (47s). 3 Dec: five calls (longest 3m 04s); 4 Dec: five (longest 1m 46s); 5 Dec: three; 8 Dec: one; 9 Dec: one; 11 Dec: five (longest 9m 05s); 12 Dec: one; 15 Dec 12:52 (3m 18s).** That is 22 calls in 3–15 Dec and one text. **None from 16 Dec to 7 Jan** (you were abroad 27 Dec to 2 Jan). Calls were frequent in the first fortnight and then stopped until January. - **From your phone to Mikheil, Jan to Mar 2026:** 8 Jan 11:01; 12 Jan 12:50, 13:25, 15:23; 13 Jan 12:49; 21 Jan 09:33; **3 Feb 09:24 (29s) and 13:55 (25s); 5 Feb 09:01 (1m 08s); 10 Feb 13:03 (4m 38s); 12 Feb 08:03 (1m 32s), 10:21 (1m 45s), 10:26 (1m 20s), 15:27 (2m 33s); 18 Feb 12:23 (2 seconds, forwarded).** No call on 30 Jan, 6, 9, 13 or 14 Feb. - **From Mikheil's phone to your number (MD14):** 30 Jan 09:20; 3 Feb 10:47; 6 Feb 15:35 (2m 37s); 10 Feb 10:36; 12 Feb 10:50 and 13:00; 18 Feb 14:24. **No call on 13 Feb.** - **From your phone to Andrejus:** 5 Feb 16:58 (6m 28s); 7 Feb 09:58 (4m 16s); **9 Feb 23:55; 10 Feb 00:02 and 01:28** (late-night calls; check where each of you was on 9–10 Feb); 11 Feb 15:37, 16:44 (5m 13s) and others; 12 Feb 16:00. **None on 6 or 13 Feb.** - **From Mikheil's phone to Andrejus (MD14):** 10 Feb 14:35 and about 15:19. None on 6 or 13 Feb. - **Other:** your 11 Feb 11:49 call to Guernsey (1m 40s) fits the ferry booking. - **From Andrejus's phone (his O2 bill, bills dated 21 Jan and 21 Feb 2026, covering 21 Dec to 20 Feb; in Raw as `bill-20260121 (1).pdf` and `bill-20260221 (1).pdf`):** - **To Mikheil:** 9 Jan 13:02 (2m 17s); 23 Jan 08:05 (5m 55s); 26 Jan 09:28 (3m 29s); **4 Feb 09:45 (4m 01s)**; **10 Feb 14:27 (3m 05s), 14:38 (18s), 18:19 (44s)**; **12 Feb 16:29 (1m 52s)**. **None on 30 Jan, 2, 3, 5, 6, 9, 11, 13, 14, 17 or 18 Feb.** No text to Mikheil. - **To you:** 30 Jan 07:57 (39s); 2 Feb 07:58 (9s); 3 Feb 11:09 (12s); 11 Feb 16:41 (2m 02s), 18:34; **12 Feb 16:03 (10m 46s), 16:16, 16:28, 16:31 (3m 14s), 20:35**; 15 Feb 14:53. **None from 4 to 10 Feb or on 13 Feb.** - **To Drulia:** 2 Feb 17:24; 3 Feb 11:09, 12:21, 15:30, 15:31; 4 Feb 13:36; 9 Feb 09:19; 10 Feb 14:02, 14:30; 11 Feb 15:11; 12 Feb 16:14; **13 Feb 14:17 (1m 06s) and 14:53**; 17, 18 and 19 Feb. - **To Nev:** 23 Jan 10:48 (7m 41s); 9 Feb 10:55 (1m 52s), 11:03. - **What it adds:** (a) Andrejus spoke to Mikheil by phone on 4, 10 and 12 Feb, which no other paper records; (b) **no call from Andrejus to Mikheil or to you on 13 Feb**, which fits the rest; (c) he was in contact with Drulia on 13 Feb during the 14:00 Teams slot, so Drulia may know where Mikheil was **[CONFIRM]**; (d) he was in Lithuania and Belgium 15–17 Jan (roaming). - Not yet read: Andrejus's bills dated 21 Nov and 21 Dec 2025 and 21 Mar 2026 (22–28 Feb), and `bill-20260303 (1).pdf` (unidentified). - **Not on any bill:** calls received in the UK (on either phone) and WhatsApp calls. - OCR of Mikheil's scanned bill: check the image.

## Appendix C. Court timeline

22 Apr claim issued; 20 May response deadline; 11–15 May N9B and Chronology sent; 19 May counterclaim documents emailed; 24 Jun N149/directions questionnaire sent; 10 Jul N180 returned (signed); 21 Oct evidence deadline 4pm passed (Notice of Allocation); 21 Oct Irina's scans of MSEM's evidence; 22 Oct N244 extension application emailed (fee unpaid; payment line 01522 551504); 23 Oct MSEM objection; 28 Oct your email to the court; 29 Oct court reply; **19 Nov 2026, 10:00, Lincoln County Court, 3 hours, attended.**